

[15. & 16 GEO. 5.] *West Hartlepool* [Ch. lxxxvii.]
Corporation (Trolley Vehicles) Order Confirmation
Act, 1925.



CHAPTER lxxxvii.

An Act to confirm a Provisional Order made by the Minister of Transport under the West Hartlepool Corporation Act 1923 relating to West Hartlepool Corporation trolley vehicles. A.D. 1925.
[7th August 1925.]

WHEREAS under the authority of sections five and fifteen of the West Hartlepool Corporation Act 1923 the Minister of Transport has made the Provisional Order set out in the schedule to this Act annexed : 13 & 14 Geo. 5. c. xcv.

And whereas a Provisional Order made by the Minister of Transport under the authority of the said Act is not of any validity or force whatever until the confirmation thereof by Act of Parliament :

And whereas it is expedient that the Provisional Order made by the Minister of Transport under the authority of the said sections and set out in the schedule to this Act annexed be confirmed by Parliament :

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. This Act may be cited as the West Hartlepool Corporation (Trolley Vehicles) Order Confirmation Act 1925. Short title.

[Price 6d. Net.]

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Confirm-
ation of
Order in
schedule.

2. The Order as amended and set out in the schedule to this Act annexed shall be and the same is hereby confirmed and all the provisions thereof in manner and form as they are set out in the said schedule shall from and after the passing of this Act have full force and validity and the date of the same shall be the date of the passing of this Act.

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S C H E D U L E.

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WEST HARTLEPOOL CORPORATION.

Order authorising the mayor aldermen and burgesses of the borough of West Hartlepool to use trolley vehicles upon routes in the borough of Hartlepool.

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Corporation.*

1. This Order may be cited as the West Hartlepool Corporation (Trolley Vehicles) Order 1925. Short title

2. In this Order the following expressions have unless the subject or context otherwise requires the meanings hereinafter assigned to them (namely) :— Interpreta-
tion.

“The Corporation” means the mayor aldermen and burgesses of the borough of West Hartlepool;

“The borough” means the borough of West Hartlepool;

“The borough fund” and “the borough rate” mean respectively the borough fund and the borough rate of the borough;

“Trolley vehicle” and “road authority” have the meaning assigned to them by section 3 (Interpretation) of the Act of 1923;

“Trolley vehicle routes” means the routes upon which the Corporation are by this Order authorised to work and use trolley vehicles;

“The Act of 1919” means the West Hartlepool Corporation Act 1919;

“The Act of 1923” means the West Hartlepool Corporation Act 1923.

3. Subject to the provisions of this Order and of the Act of 1923 so far as such provisions are not inconsistent with or rendered unnecessary by the provisions of this Order the Corporation may use trolley vehicles upon the following trolley vehicle routes all in the borough of Hartlepool in addition to any routes upon which they are already authorised to use trolley vehicles (that is to say) :— Power to use
trolley
vehicles.

Route No. 1 2 miles 1 furlong 7 chains or thereabouts in length commencing at the boundary of the borough in Cleveland Road passing along Cleveland Road Milbank Crescent Northgate Street Middlegate Street Church Close Friar Street Friar Terrace Brougham Street and Durham Street to and terminating at the junction of the last-named street with Milbank Crescent;

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Route No. 1A 4·3 chains or thereabouts in length commencing at the junction of Northgate Street and Middlegate Street passing along Middlegate Street in a westerly direction into Victoria Street Sunnyside and Friendship Lane and terminating (a) in Victoria Street at a point sixty feet or thereabouts south of the intersection of the centre lines of Victoria Street and Friendship Lane (b) in Friendship Lane at a point sixty feet or thereabouts west of the intersection of those centre lines and (c) in Sunnyside at a point forty feet or thereabouts north of the intersection of the centre lines of Sunnyside and Middlegate Street;

Route No. 2 1 furlong 6·2 chains or thereabouts in length commencing at the junction of Union Street and Northgate Street proceeding along Union Street Brougham Street to its junction with Lumley Street and Lumley Street to and terminating at its junction with Friar Street;

Route No. 2A 2·4 chains or thereabouts in length commencing at the junction of Brougham Street and Lumley Street passing along Brougham Street to and terminating at its junction with Church Close :

Provided that notwithstanding anything contained in this Order trolley vehicles shall not be used by the Corporation in Church Close Friar Street Friar Terrace Union Street Lumley Street Victoria Street Sunnyside or Friendship Lane except with the consent in writing of the Minister of Transport and subject to such conditions as he may impose :

Provided also that before equipping any trolley vehicle route to include a turning point or before arranging for a new turning point on any route the Corporation shall submit plans of the turning points to the Minister of Transport for approval.

Unless and until an order be made by the Minister of Transport under the section of this Order of which the marginal note is "As to abandonment of tramways" in relation to any tramways along trolley vehicle routes it shall not be necessary to provide a service of tramcars upon the route of any of such tramways along which a service of trolley vehicles is provided by the Corporation under the provisions of this Order so long as such service of trolley vehicles continues to be so provided.

Adaptation
of roads.

4.—(1) (a) Before the Corporation commence to run trolley vehicles under the provisions of this Order over any road or part of a road it shall be determined by agreement between the Corporation and the road authority or failing agreement by the Minister of Transport whether it is necessary (in order to provide for the running under the powers of this Order of a service of

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trolley vehicles over any such road or part of a road) to adapt alter or reconstruct such road or part of a road or to strengthen any county bridge or district bridge and if so what sum of money per mile of road so to be adapted altered or reconstructed or what sum of money in respect of any such bridge shall be payable by the Corporation to the road authority by way of contribution towards the cost incurred in such adaptation alteration reconstruction or strengthening.

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(b) Within six months after the date upon which all questions to be agreed or determined in pursuance of paragraph (a) of this subsection have been so agreed or determined the Corporation shall give notice in writing to the road authority as to whether they intend to run trolley vehicles over the road or part of a road or bridge in question.

(c) If the Corporation give notice in writing to the road authority that they intend to run trolley vehicles over the road or part of a road or bridge in question and if it shall have been agreed or determined that the Corporation are to make any payment to the road authority under the provisions of paragraph (a) of this subsection the Corporation shall on receipt of any certificate which may from time to time be issued by the engineer in charge of the work of adaptation alteration or reconstruction of such road or part of a road or of strengthening such bridge pay to the road authority such proportion of the total amount of the contribution agreed or determined to be payable by the Corporation as the amount so certified to have been expended upon such work bears to the total amount estimated to be expended by the road authority on such work Provided that the aggregate amount to be so paid by the Corporation shall not exceed the amount of the contribution agreed or determined to be payable by them as aforesaid.

(d) Notwithstanding anything in this subsection the Corporation shall not be required to pay any sum in respect of any work towards or in respect of the adaptation alteration or reconstruction of any such road or part of a road or the strengthening of any bridge which is not executed within three years from the date on which the Corporation shall commence to run trolley vehicles over the road or part of a road to be adapted altered or reconstructed or over the bridge to be strengthened.

(e) Not more than one payment or (in the case of a payment by instalments in accordance with paragraph (c) of this subsection) one series of payments shall be made in respect of any such road or part of a road so adapted altered or reconstructed or of any such bridge so strengthened.

(f) For the purposes of this subsection the expression "county bridge" shall include every bridge maintainable by a county

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council and in respect of such bridge the county council shall be deemed to be the road authority and the expression "district bridge" shall include every bridge maintainable by a district council and in respect of such bridge the district council shall be deemed to be the road authority.

(2) Any payment made to a road authority under this section in respect of any main road retained by them under subsection (2) of section 11 of the Local Government Act 1888 or maintained by them under subsection (4) of that section shall be credited to the county council in ascertaining the amount payable by them under either of the said subsections of the Local Government Act 1888.

(3) If any such adaptation alteration reconstruction or strengthening as aforesaid shall involve an alteration of any telegraphic line (as defined by the Telegraph Act 1878) belonging to or used by the Postmaster-General the enactments contained in section 7 of the Telegraph Act 1878 shall apply to any such alteration and the road authority shall be deemed to be "undertakers" within the meaning of the said Act.

(4) The road authority shall not under section 23 of the Highways and Locomotives (Amendment) Act 1878 as amended by section 12 of the Locomotives Act 1898 or otherwise make any claim against the Corporation in respect of extraordinary traffic by reason of the user of any highway by the trolley vehicles of the Corporation.

(5) An agreement under this section with respect to any main road maintained by a local authority at the expense of any county council shall not be made except with the concurrence of that county council.

(6) Nothing in this Order shall impose any obligation upon any railway or canal company to strengthen adapt alter or reconstruct any bridge maintainable by them or enlarge any existing obligation.

As to aban-
donment of
tramways.

5.—(1) At any time after the passing of this Order the Minister of Transport may by order require the abandonment or discontinuance temporarily or permanently of the tramways for the time being along the route of which the Corporation have provided and equipped trolley vehicles under the provisions of this Order.

(2) Before making any such order the Minister of Transport may hold such inquiry as he may consider desirable.

(3) Any order made under the provisions of this section may as from such date as may be specified therein provide for the cesser of all or any of the powers liabilities duties or obligations

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conferred or imposed by any Act or Order relating to the tramways to be abandoned or discontinued in pursuance of such order and may provide for the removal of the rails of such tramways and the restoration of the portion of the road upon which such rails were laid to as good a condition as that in which it was before such rails were laid down.

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(4) Where the Minister of Transport causes any inquiry to be held under the provisions of this section all expenses incurred by the Minister in relation to that inquiry shall be paid as the Minister may by order direct and the Minister may certify the amount of the expenses incurred and any sum so certified and directed by the Minister to be paid shall be a debt due to the Crown.

6. The Corporation may carry passengers or parcels or passengers' luggage on any trolley vehicle run by them upon so much of Route No. 4 authorised by the Act of 1923 as lies between the junction of Middleton Road with Clarence Road and the northern termination of that route.

As to Route
 No. 4 autho-
 rised by Act
 of 1923.

7. Notwithstanding anything contained in the Act of 1923 or this Order the trolley vehicles of the Corporation shall only be used for the purpose of conveying—

As to traffic
 on trolley
 vehicles.

(a) passengers and their luggage;

(b) dogs in the care of passengers;

(c) materials for the construction or repair of roads of or by the Corporation;

(d) parcels not exceeding fifty-six pounds in weight; and

(e) mails;

and save as aforesaid shall not be used for the carriage of animals minerals or goods.

8. In the application of the Act of 1923 to the trolley vehicle routes authorised by this Order section 8 thereof shall have effect as if the words "omnibuses within the meaning of the Town Police Clauses Act 1889 nor shall they be deemed to be" were inserted after the words "shall not be deemed to be" and the words "Section 6 and the provisions as amended by the Roads Act 1920 relating to licensing and licences of drivers" were inserted after the words "for enforcing that subsection."

Application
 of Act of
 1923.

9.—(1) The Corporation may from time to time independently of any other borrowing power borrow at interest for and in connection with the purposes mentioned in the first column of the following table the respective sums mentioned in the second column thereof and in order to secure the repayment thereof and the payment of interest thereon they may mortgage or charge the revenue of the tramway undertaking of the Corporation and the borough fund and borough rate and

Power to
 borrow.

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Purpose.	Amount.	Period for repayment.
(a) The provision of trolley vehicles	£ 16,000	Ten years from the date or dates of borrowing.
(b) The provision of electrical equipment and the construction of other works necessary for working the trolley vehicles authorised by this Order.	6,260	Twenty years from the date or dates of borrowing.
(c) The remaking of roads and the removal of the tramway track (including sum payable to General Electric Tramways Company Limited).	7,388	Twenty years from the date or dates of borrowing.
(d) The payment of the costs charges and expenses of this Order.	The sum requisite	Five years from the passing of this Order.

(2) The provisions of this section shall not limit the powers conferred upon the Corporation by section 55 (Power to use one form of mortgage for all purposes) of the Act of 1919.

*For pro-
tection of
Hartlepool
Corporation.*

10. Notwithstanding anything contained in this Order the following provisions for the protection and benefit of the mayor aldermen and burgesses of the borough of Hartlepool (in this section called "the Hartlepool Corporation") shall unless otherwise agreed between the Corporation and the Hartlepool Corporation apply and have effect (that is to say) :—

(1) If the Hartlepool Corporation shall under the provisions of the Tramways Act 1870 purchase as from the second day of August nineteen hundred and twenty-five the tramways in the Borough of Hartlepool belonging to the General Electric Tramways Company Limited and if within a period of two years from the date of the Act confirming this Order the Hartlepool Corporation shall make application to Parliament for an Act to empower them to use trolley vehicles on the routes described in the section of this Order of which the marginal note is "Power to use trolley vehicles" the Corporation shall not oppose such application except so far as may be necessary to secure the insertion of provisions for the protection of their interests in conformity with the provisions of this section and of any agreement entered into by them with the Hartlepool Corporation:

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Provided that the Bill for any such Act shall contain provisions—

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(a) For requiring the Hartlepool Corporation to purchase the overhead equipment and other works erected or constructed by the Corporation in the Borough of Hartlepool under the provisions of this Order the price to be paid therefor being the amount of the capital expenditure incurred by the Corporation thereon less such sum as may be reasonable in respect of the depreciation of such equipment and other works;

(b) For transferring to the Hartlepool Corporation any liability of the Corporation under the provisions of the section of this Order of which the marginal note is "Adaptation of roads" and for the repayment by the Hartlepool Corporation to the Corporation of any sums expended by the Corporation under the provisions of that section;

(c) For empowering the Corporation to run over and use the trolley vehicle routes above referred to and all equipment and works in connection therewith and also for empowering the Hartlepool Corporation to run over and use Route No. 4 authorised by the West Hartlepool Corporation Act 1923 and so much of Route No. 1 authorised by that Act as forms part of the through route referred to in section 40 of the Order of 1912 and all equipment and works in connection therewith upon the same terms in each case (with any necessary modifications) as those contained in the said section 40;

(d) For empowering the Hartlepool Corporation to enter into working agreements with the Corporation and any company body or person owning or working trolley vehicles in the borough:

- (2) The Hartlepool Corporation may if they so determine include in the Bill for any such Act a provision for repealing the powers conferred upon the Corporation by the section of this Order of which the marginal note is "Power to use trolley vehicles" as from the date upon which the Hartlepool Corporation complete the purchase of the trolley vehicle equipment referred to in proviso (a) to subsection (1) of this section but without prejudice to the right to be conferred upon the Corporation by such Bill to run over and use the trolley vehicle routes authorised by this Order and all equipment and works in connection therewith: